

SENATE No. 1406

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the prescription monitoring program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>

SENATE No. 1406

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 1406) of John F. Keenan and James K. Hawkins for legislation relative to the prescription monitor program. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the prescription monitoring program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 24A of Chapter 94C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (c) the following new
3 subsection:-

4 (c½) The department shall establish, by rule or regulation, a process by which to include
5 information about the administration of opioid maintenance treatment in the prescription
6 monitoring program, when the inclusion of such information does not conflict with state or
7 federal privacy rules. The purpose of this subsection shall be to ensure that licensed professionals
8 authorized to prescribe controlled substances receive information, through utilization of the
9 prescription monitoring program, about an individual patient's participation in opioid
10 maintenance treatment prior to issuing a new prescription for an opioid substance other than the
11 substance used for opioid maintenance treatment.

SECTION 2. Section 18 of chapter 111E of the General Laws, is hereby amended by inserting after subsection (a) the following new subsection:-

(a $\frac{1}{2}$) For each facility that is an opioid treatment program, as defined under 42 CFR Part 8, the facility shall present to each individual entering treatment a form that allows the individual to consent to the release of information, through the prescription monitoring program, about the administration of opioid maintenance treatment at the facility. Said consent form shall be accompanied by information clearly explaining that such consent is not required but is encouraged to improve coordination of services; and by information on how the individual may complete and return the form to the facility or to the department of public health if they elect to give such consent. A record of the individual's election relative to this form shall be maintained by the facility as part of the record of treatment required by this section. The same form and information shall be presented to the individual upon their discharge from the facility.